



Endeavour – retail liquor site in Horsham, Victoria

MN – 10027

Phase 1 Determination

Acquisition may be put into effect

10 September 2026

1. Determination and statement of reasons

Notified acquisition	Endeavour Group (Endeavour) proposes to acquire a leasehold interest for retail space at 54-56 McLachlan Street, Horsham VIC 3400 (the Proposed Site) from Colab (AUS) Pty Ltd (the Lessor) (the Acquisition). Endeavour intends to close the existing BWS store at Hamilton Street, Horsham and relocate the licence in use at that store for use at the proposed new Dan Murphy's store.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Endeavour, is an Australian public company that primarily operates: ▪ retail liquor stores nationwide under the BWS and Dan Murphy's brands, ▪ licensed hotel venues under the ALH Hotels banner nationally. These venues are individually branded venues offering on-premises food and drinks, entertainment, gaming services and, in some cases, accommodation, and ▪ Pinnacle Drinks, a manufacturer and distributor of liquor products, which it distributes exclusively to the Endeavour retail and hotel network in Australia. Endeavour intends to close the existing BWS store at Hamilton Street, Horsham and relocate the licence in use at that store for use at the proposed new Dan Murphy's store. The Lessor is a real estate developer and does not supply wholesale or retail takeaway packaged liquor in Australia.
Overlap between the Parties	The leasehold interest would be an input into Endeavour Group's existing takeaway packaged liquor operations.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC

	makes the following findings. ▪ The proposed Dan Murphy's store would face competition from several alternative suppliers of takeaway packaged liquor in the Horsham area, including Liquorland, Aldi, Cellarbrations and Bottlemart, all of which are located less than one kilometre from the proposed Dan Murphy's store. ▪ While one stakeholder raised concerns that a Dan Murphy's may have greater purchasing and promotional power than existing competitors and the Acquisition may impact the long-term viability of existing competitors, the ACCC considers that this is unlikely to result in a substantial lessening of competition due to the proximity of other competitors to the relevant site, including those that are part of large corporate groups. ▪ The aggregation arising from the Acquisition, including considering previous acquisitions by Endeavour Group in Victoria in the last 3 years, is not sufficient to meaningfully impact upon competition in the relevant broader market.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act